

HOUSE No. 2069

The Commonwealth of Massachusetts

PRESENTED BY:

David Biele

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regarding trash and recycling collectors, moving contractors, and motor bus pupil transporters.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Biele</i>	<i>4th Suffolk</i>	<i>1/17/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>4/8/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/8/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>4/8/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>9/15/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/6/2026</i>

HOUSE No. 2069

By Representative Biele of Boston, a petition (accompanied by bill, House, No. 2069) of David Biele relative to the wages of trash and recycling collectors, moving contractors, and motor bus pupil transporters. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regarding trash and recycling collectors, moving contractors, and motor bus pupil transporters.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 149 of the General Laws, as appearing in the 2022 official edition,
2 is hereby amended in section 27F by striking said section and inserting in place thereof the
3 following:-

4 “Section 27F: Wages of operators of rented equipment; agreements; penalty; civil action

5 Section 27F. No agreement of lease, rental or other arrangement, and no order or
6 requisition under which a truck or any automotive or other vehicle or equipment is to be engaged
7 in public works by the Commonwealth or by a county, city, town or district, shall be entered into
8 or given by any public official or public body unless said agreement, order or requisition
9 contains a stipulation requiring prescribed rates of wages, as determined by the commissioner, to
10 be paid to the operators of said trucks, vehicles or equipment. Any such agreement, order or
11 requisition which does not contain said stipulation shall be invalid, and no payment shall be

made thereunder. Said rates of wages shall be requested of said commissioner by said public official or public body, and shall be furnished by the commissioner in a schedule containing the classifications of jobs, and the rate of wages to be paid for each job. Said rates of wages shall include payments to health and welfare plans, pension plans, or, if no such plan is in effect between employers and employees, the amount of such payments shall be paid directly to said operators.

Whoever pays less than said rates of wages, including payments to health and welfare funds, pension plans or the equivalent in wages, on said works, and whoever accepts for his own use, or for the use of any other person, as a rebate, gratuity or in any other guise, any part or portion of said wages or health and welfare funds, pension plans shall have violated this section and shall be punished or shall be subject to a civil citation or order as provided in section 27C.

An employee claiming to be aggrieved by a violation of this section may, 90 days after the filing of a complaint with the attorney general, or sooner if the attorney general assents in writing, and within 3 years after the violation, institute and prosecute in his own name and on his own behalf, or for himself and for others similarly situated, a civil action for injunctive relief, for any damages incurred, and for any lost wages and other benefits. An employee so aggrieved who prevails in such an action shall be awarded treble damages, as liquidated damages, for any lost wages and other benefits and shall also be awarded the costs of the litigation and reasonable attorneys' fees."

SECTION 2. Chapter 149 of the General Laws, as appearing in the 2022 official edition, is hereby amended in section 27G by striking said section and inserting in place thereof the following:-

“Section 27G: Wages of employees of moving contractors; contracts; injunctive relief;
damages

Section 27G. No contract for the moving of office furniture and fixtures shall be entered into or given by the commonwealth or by a county, city, town or district unless said contract contains a stipulation requiring prescribed rates of wages, as determined by the commissioner, to be paid to the employees of a moving contractor. Any such contract which does not contain said stipulation shall be invalid, and no payment shall be made thereunder. Said rates of wages shall be requested of the commissioner by the commonwealth or by a county, city, town or district, and shall be furnished by the commissioner in a schedule containing the classifications of jobs and the rate of wages to be paid for each job. Said rates of wages shall include payments to health and welfare plans, pension plans or, if no such plan is in effect between employers and employees, the amount of such payments shall be paid directly to said employees.

An employee claiming to be aggrieved by a violation of this section may, 90 days after the filing of a complaint with the attorney general, or sooner if the attorney general assents in writing, and within 3 years after the violation, institute and prosecute in his own name and on his own behalf, or for himself and for others similarly situated, a civil action for injunctive relief, for any damages incurred, and for any lost wages and other benefits. An employee so aggrieved who prevails in such an action shall be awarded treble damages, as liquidated damages, for any lost wages and other benefits and shall also be awarded the costs of the litigation and reasonable attorneys' fees.”

SECTION 3. Chapter 149 of the General Laws, as appearing in the 2022 official edition, is hereby amended in section 27I by striking said section and inserting in place thereof the following:-

“Section 27I: Wages of school bus drivers; contracts; injunctive relief; damages

Section 27I. No contract for the transportation of pupils in the Commonwealth shall be entered into or given by a county, city, town or school district unless said contract contains a stipulation requiring prescribed rates of wages, as determined by the commissioner, to be paid to the employees of a motor bus company as defined by Section 7A of Chapter 71 of the Massachusetts General Laws. Any such contract which does not contain said stipulation shall be invalid, and no payment shall be made thereunder. Said rates of wages shall be requested of the commissioner by the Commonwealth or by a county, city, town or school district, and shall be furnished by the commissioner in a schedule containing the classifications of jobs and the rate of wages to be paid for each job. Said rates of wages shall include payments to health and welfare plans, pension plans or, if no such plan is in effect between employers and employees, the amount of such payments shall be paid directly to said employees.

An employee claiming to be aggrieved by a violation of this section may, 90 days after the filing of a complaint with the attorney general, or sooner if the attorney general assents in writing, and within 3 years after the violation, institute and prosecute in his own name and on his own behalf, or for himself and for others similarly situated, a civil action for injunctive relief, for any damages incurred, and for any lost wages and other benefits. An employee so aggrieved who prevails in such an action shall be awarded treble damages, as liquidated damages, for any lost

75 wages and other benefits and shall also be awarded the costs of the litigation and reasonable
76 attorneys' fees.”